

# Knowlio

## Creator License Agreement

This is a legal agreement. Please review it thoroughly and ensure you fully understand its contents before licensing your works to Knowlio. THIS AGREEMENT CONTAINS IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS, INCLUDING YOUR CONSENT TO MANDATORY ARBITRATION.

### 1. Overview of Licensing Through Knowlio.

**1.1 Introduction.** Knowlio is developing advanced technology and delivering services that empower creative industries with control over, and compensation for, the use of their work by AI companies. For rightsholders like you, this means access to our licensing platform—offering customizable license terms, royalty payments for granted licenses, and the ability to opt out of any deal where terms are unsatisfactory. For AI companies, it means building trust by licensing authorized, high-quality content, reducing exposure to copyright litigation, and gaining access to best-in-class copies of licensed works through a unified, streamlined platform. We believe that with thoughtful collaboration, all stakeholders in this evolving AI landscape can foster a sustainable, fair, and flourishing ecosystem for creators and AI developers alike.

**1.2 Identifying Defined Terms.** We are about to start introducing definitions for certain terms we use throughout the Agreement. Where we define a term, you'll see we put the term in quotation marks, bold font and capital letters. Where you see unexpected capital letters in this document, it's likely you are seeing a term that is defined elsewhere in the document – usually above, but sometimes below where you're reading.

**1.3 AI Platform Basics and Definitions.** Before we jump into to discussing the way we may license your works, we want to set out some key terms and definitions related to AI systems and how they operate. “**AI**” is short for “**Artificial Intelligence**” which is a term used to describe computer systems that can, for a given set of objectives, infer from an Input it receives how to generate predictions, recommendations, content or decisions that influence physical or virtual environments. AI may include large language models (known as “**LLMs**”), small language models, generative AI systems, or derivative technologies and applications, both as they exist today and as they may evolve in the future. A “**Trained Model**” means an AI model that is trained using tokenized datasets that are comprised, in whole or in part, of Works licensed in connection with the Platform (as defined below), including both training to create a new AI model and/or to fine-tune an existing AI model. As used in this Agreement, an “**AI Product**” means an AI model, algorithm, software, technology, tool, interface, service or computer system that uses (i) with respect to Training Rights, one or more Trained Models or (ii) with respect to Reference Rights, one or more Grounded Models (and associated Grounding Tools). As referred to in the previous sentence and as discussed in more detail below, the term “**Training Rights**” means rights for an AI Licensee to convert licensed Selected Works to tokenized datasets and use those datasets for purposes of creating one or more Trained Models to generate permitted Output, and the term “**Reference Rights**” means rights for an AI Licensee to use licensed Selected Works in Grounding Tools for purposes of creating one or more Grounded Models to generate permitted Output that may incorporate portions of such Selected Works, depending on the AI Right(s) licensed. The other terms mentioned in the definition of AI Product are “**Grounded Model**”, which means a trained AI model (including Trained Models or other AI models that were not trained on Works licensed in connection with the Platform) that references, queries, or otherwise uses one or more Grounding Tools each time it generates Output, and “**Grounding Tools**”, which means databases and/or other mechanisms that index, reference, or otherwise incorporate and use Selected Works licensed in connection with the Platform in order to facilitate retrieval-augmented generation (RAG) or other grounding to improve accuracy and relevancy of Output and/or other rules or restrictions for Output (such as providing required attribution or linking). Grounding Tools are used by AI models without

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training those models. In this Agreement, the term “**Input**” means any prompt, input, query, command, data, context or other instruction an End User provides to or inputs for use by an AI Product and the term “**Output**” means all output of any kind or format, whether text, data, image, video, sound, code or other content that is generated by an AI Product in response to a Input. AI programs may have one or more types of users. “**Internal User**” means an AI company’s employees, independent contractors, and other authorized end users within its organization who have access to use the AI Product, such as students enrolled at an educational institution. On the other hand, “**Product User**” includes all third-party subscribers, customers, clients, and other authorized end users of an AI Product, other than Internal Users. When we refer to both Internal Users and Product Users collectively, we call them an “**End User**”.

**1.4 Agreement Basics.** This Creator License Agreement (this “**Agreement**”) is a legally binding agreement between you (“**Creator**”, but also **you** or **your**) and Knowlio, Inc. (“**Knowlio**”, but also **us**, **we** or **our**), which sets out the terms and conditions for licensing the works you own (or control) and select to make available through us for licensing to an AI company. Let’s start by defining some core terms for this agreement. When we refer to our “**Platform**”, we mean our licensing platform, our websites, apps, widgets, APIs and other products and services we offer. When we use the term “**Work**”, we mean a work of authorship that is uploaded to the Platform, or otherwise provided to us by you or on your behalf (for example, by your agent, publisher, co-author), together with any and all related Information. For a Work to be accepted and maintained within the Platform, it must comply with our “**Review and Content Policies**” which are provided in [Appendix A](#) of this Agreement. Finally, the term “**Information**” means any information, data or metadata related to or regarding a Work which is uploaded to the Platform, or otherwise provided to us by you or on your behalf, including the Work’s title, the names of any other authors and any other holder of rights to the Work, copyright management information, thumbnail images, and standard identifier numbers; however, the term Information excludes all Creator Confidential Information.

**1.5 Selecting Your Works in the Platform.** Once you have established an account within the Platform, you will be given the opportunity to select and add your Works to your account so you can later choose whether or not to make them available for licensing. After this process is complete, each of the Works you have selected to make available for licensing becomes a “**Selected Work**”. A copy of each Selected Work will be uploaded to the Platform through our existing data partners, through other Rightsholders who have identified you as a Rightsholder, or if the Work (or the required version of the Work) is not available from these sources, by you manually uploading it. Once you have one or more Selected Works in your account, you will be allowed to set the rights you do (and do not) want to license for each Selected Work, which we call AI Rights and will discuss in the next section. In the section after that, we will discuss what happens if you share ownership or other control of the rights in a Selected Work with other parties (*i.e.*, co-authors, contributors and publishers).

**1.6 Core Concept: AI Rights.** Knowlio has created and introduced a concept we call AI Rights, which describes a new set of rights and licenses born out of the technological methods used to build and improve AI systems using existing, human-created creative works. In this Agreement, the term “**AI Rights**” means the rights for an AI Licensee to use Selected Works within the scope of their license for certain specified purposes, as further described in the applicable AI Licensee Terms (defined below). These AI Rights presently include the rights for Training Rights and Reference Rights, though we anticipate offering New AI Rights through the Platform over time. As we’ll discuss further, you will have the ability to set each of the AI Rights you wish to make available through the Platform for each of your Selected Works before any of them are made available for licensing to a third party.

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- ¥ **Training.** When we talk about training licenses, we are referring to a subset of AI Rights that may be granted to an AI company to exercise Training Rights. Training licenses may be granted for a perpetual term, which will be reflected in the proposed license agreement we provide for your review.
- ¥ **Reference.** When we discuss reference licenses, we are referring to a subset of AI Rights that may be granted to an AI company to exercise Reference Rights. Unlike most training licenses, reference licenses may be licensed for a period of time and then renewed, renegotiated or terminated.

Once you have selected all (and at least one of) the AI Rights that you would like to make available to license for each of your Selected Works and saved the selections in the Platform, you will have completed your part of the AI Rights process. If you are the only Rightsholder in such AI Rights for the Selected Works, those rights will become Available AI Rights. As discussed further in the next section, once you and any other Rightsholders have set matching AI Rights for Selected Works and agreed on the proportions of each of the Rightsholders' rights in the Selected Works within the Platform, those rights will become **"Available AI Rights"**. Additionally, as discussed in detail below, you have the option to be notified through the Platform of any potential deal including your Available AI Rights.

**1.7 Multiple Rightsholders.** To further our goal of creating a fair and equitable AI licensing ecosystem, if you share ownership or control of the AI Rights in a Work with any other parties (for example, co-authors, contributors and publishers), we require that all of you agree on the AI Rights selected and proportion of each of the parties' rights in such AI Rights for each Selected Work. We refer to you and each other person or entity that owns or has a legal or contractual interest in one or more of the AI Rights for any Work, collectively, as **"Rightsholders"**, and if there are no other Rightsholders for a Work or for one or more of the AI Rights in a Work, then we refer to you as the sole "Rightsholder" for that Work or each of those AI Rights, as applicable. You are required to disclose all other Rightsholders for each of your Selected Works and to keep all information related to these and any new Rightsholders current, accurate and complete at all times.

We believe it is essential that Rightsholders act in a coordinated and transparent manner with one another, both within the Platform and in the greater licensing ecosystem. To reflect our belief that no Rightsholder should be dragged along into a deal it does not want to be a part of, we require complete agreement amongst Rightsholders before any selected AI Rights become Available AI Rights. By way of example, if you selected AI Rights for only training licenses of a Selected Work, but another Rightsholder in that Selected Work chose training licenses and all reference licenses for AI Rights, only the AI Rights for training licenses will become Available AI Rights for that Selected Work. The same holds true for opt-outs on Potential Deals, where any one Rightsholder opts out of a Potential Deal, their doing so will remove the applicable Available AI Rights for that Selected Work from that Potential Deal, even if other Rightsholders wish to approve it.

While there are tools in the Platform designed to clearly establish each Rightsholders' respective rights to and proportions of AI Rights for each Selected Work, we understand that there may not always be consensus. You and the other Rightsholders are responsible for working together to negotiate and resolve any issues or discrepancies on how a Work should be licensed and the licensing revenue divided. To this end, the Platform may enable you to see whether other Rightsholders have selected any AI Rights (and which AI Rights they have selected) and vice versa. If at any time a Rightsholder ceases to have AI Rights in a given Work, or if you believe there has been an error in designating a publisher or other Rightsholder for any of your AI Rights, you may contact us at [support@knowlio.ai](mailto:support@knowlio.ai).

**1.8 Licensing Available AI Rights.** Once Available AI Rights have been established, they may be made available in our Platform marketplace, or in a custom offering we may create, in combination with other works (unless we have your opt-in through the Platform to accept a proposed deal comprised solely of one

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or more of your Available AI Rights), which we call an “**Offering**”. Each Offering will be coupled with terms, conditions and restrictions (including Licensing Restrictions) that the AI Licensee will be required to accept to license the Offering, which we call the “**AI Licensee Terms**” for purposes of this Agreement. The term “**Licensing Restrictions**” means the terms and conditions applicable to all AI Licensees that limit or otherwise apply to the manner in which AI Licensees (and their End Users) exercise the AI Rights licensed in an Offering. Following a Deal Deadline (see Deal Approvals section, below), if one or more of your Available AI Rights for Selected Work(s) remains in an Offering that, together with the AI Licensee Terms, is accepted by an AI Licensee and us, this will result in a “**Licensed Offering**”. The AI company (whether commercial AI developers or other types of licensees such as enterprise businesses, universities or school systems, government agencies or non-profits) who is licensing the Licensed Offering is referred to as an “**AI Licensee**”. Finally, any one of your Selected Works being licensed through a Licensed Offering is referred to as a “**Licensed Work**”.

**1.9 Additional Terms.** There are many other terms, conditions and licenses in this Agreement that form the basis of this Agreement and are not discussed or described above. Even though it may be tempting to skip to the bottom of this Agreement now that we’ve laid out the general framework of a deal, we encourage you to read through this entire document carefully and fully understand what you are agreeing to.

When you register for an account on our Platform, your use of the Platform will be governed by our Terms of service and privacy policy and any other terms, conditions, rules, policies and guidelines that we may publish from time to time on or through the Platform (collectively, the “**Platform Rules**”). While the Platform Rules will govern your use of and access to the Platform, they do not alter or override the terms of this Agreement. However, if your Platform access is terminated or suspended under the Platform Rules, neither you nor we will be able to license your Available AI Rights through the Platform unless and until you are granted Platform access once again, but any existing licenses will continue in accordance with their terms.

As you’ve no doubt heard, things are changing fast in the world of AI. Please note, that as AI technology and the industries using it continue to rapidly evolve, you or we may find that this Agreement needs to be amended or redone altogether. While we may ask you to agree to an amendment or enter a new agreement with us, please rest assured that this Agreement will not be modified or replaced without your explicit consent.

## 2. Licenses to Knowlio.

**2.1 Your Works.** In order for us to make any of your Available AI Rights available for licensing and to make any Offering to a potential AI Licensee, we need to obtain certain rights from you in this section. Subject to any and all applicable restrictions and limitations in this Agreement, you hereby grant to Knowlio a limited, non-exclusive, sublicensable (through multiple tiers), right and license to use your Works in connection with the offering, licensing and marketing of Available AI Rights through or in connection with its operation of the Platform, as further specified below:

- (a) **solely for purposes of operating the Platform and making Offerings, in each case, to:** (i) host, store, copy, transmit, analyze, index, categorize, reproduce, modify, distribute, display, monetize, commercialize, and otherwise use your Works; (ii) use your Works in connection with the Platform, and to optimize the Platform, verify compliance, and, subject to any permissions required under the Publicity Rights section, creating and presenting demos or other examples of Offerings; (iii) promote and market your Selected Works in accord with any applicable restrictions in this Agreement (iv)

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publicly display on the Platform all Information related to your Selected Works attached to any Available AI Right, alongside other related information we may create or obtain; (v) include Selected Works in Offerings subject to the Available AI Right(s); and (vi) design, develop, structure, create, price, market, promote and make available any Offerings;

- (b) **solely for purposes of Knowlio establishing a repository for and allowing access to Licensed Works in connection with Offerings of Reference Rights where the applicable Licensed Works are hosted on the Platform, to:** host, store, copy, transmit, analyze, index, categorize, reproduce, modify, distribute, perform, exhibit, display, monetize, commercialize, and otherwise use your Selected Works; **and strictly to the extent needed to provide the applicable licensed Available AI Rights, to:** make limited translations, adaptations, or derivative works of such Licensed Works;
- (c) grant each AI Licensee all rights and licenses reasonably necessary for them to use the Licensed Works to exercise the applicable licensed Available AI Right(s) (in each case subject to their compliance with all applicable AI Licensee Terms), which may include: (i) **where reasonably necessary for the exercise of Reference Rights where the applicable Licensed Works are hosted by the AI Licensee**, rights to host, store, copy, transmit, analyze, index, categorize, reproduce, distribute, display, perform and/or exhibit your Licensed Works; and (ii) **strictly to the extent needed in each case to allow the AI Licensee the ability to exercise any Available AI Right applicable to Licensed Works and in every case subject to the applicable Licensing Restrictions**, the limited right to translate, adapt, modify or make derivative works of your Licensed Works, and to authorize their End Users to do the same; and
- (d) provide AI Licensees with copies of or access to Licensed Works.

**Please remember that all licenses in sections 2.1(a), 2.1(b), 2.1(c)(i) and 2.1(c)(ii) are subject in every case to the Available AI Rights you've set in the Platform and all applicable Licensing Restrictions.** The licenses granted to us in this Section are all transferable and assignable by us, but solely to the extent in connection with a permitted transfer or assignment of this Agreement.

**2.2 Publicity Rights.** In order for us to promote your Selected Works and the Platform, to license Available AI Rights attached to Selected Works and, where applicable, to attribute and to require and enable AI Licensees to attribute you, your Licensed Work (or any portion thereof) or any Information, we need to obtain the following rights from you. Without limiting the foregoing, but subject to any other restrictions and limitations in this Agreement, you hereby grant to us a non-exclusive, limited right and license to display and otherwise use your name, the title of your Selected Works attached to any Available AI Rights and any other information you may add to your Platform account's public profile (such as your username, social media handles, website, location, and profile photos (including your likeness therein)), alone (for example through the Platform where a potential AI Licensee is reviewing an individual Selected Work or a landing page for your Selected Works) and/or in conjunction with other content or information, including for all attributions contemplated under this Agreement. The grant of rights in the immediately preceding sentence shall also apply to our internal, non-public marketing materials and organic social media uses, however, any use of your name, image, likeness or Works intended for promotional, publicity, public marketing materials and initiatives, and/or any other uses of the foregoing that would reasonably be perceived as an endorsement of Knowlio or the Platform by you will require your express approval in advance. Except where your permission is expressly required for any uses of your name, information or likeness pursuant to the rights and licenses granted hereunder, you hereby irrevocably waive any and all rights to inspect or approve such uses.

**2.3 So-Called "Moral Rights".** The term "moral rights" comes from the French phrase *droit moral* and generally refers to certain noneconomic rights that are considered personal to an author, including the right to be credited and the right to prevent material, unauthorized changes to the work. While these rights have a long history in international copyright law, generally the United States has not adopted moral rights for

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literary (i.e., text-based) works as they exist in many other countries. By their nature, many of the licenses contemplated in this Agreement are not compatible with moral rights.

Let's look at some potential use cases as examples. When an AI Licensee obtains a training license, your Licensed Work will not necessarily be stored or used in Outputs in a recognizable manner, but will generally be mixed with a great deal of other data in the training process and copyright management information may be removed. When an AI Licensee obtains a reference license, any resulting Output may be combined with material from other creators and/or the AI program and may add or remove meaning from and/or context to the portion of your Licensed Work included in the Output. In some circumstances (except where attribution or inclusion of specific Information is required in the applicable AI Licensee Terms) an Output may add or remove Information (including copyright management information) associated with your Licensed Works.

Except where attribution or inclusion of specific Information is required in the applicable AI Licensee Terms, our ability to operate the Platform and make Offerings is dependent on you waiving moral rights. As such, by accepting this Agreement you agree to irrevocably waive any and all claims and assertions of moral rights or violations of rights concerning attribution, integrity, or removal of copyright management information that you may have in or with respect to your Licensed Works and any related Information in connection with the licensing and use of your Licensed Works in accordance with this Agreement and any applicable AI Licensee Terms (your **"Moral Rights Waiver"**). You further agree that we may add or remove Information associated with your Selected Works in the course of exercising our rights and licenses granted hereunder and otherwise in a manner consistent with this Agreement, and you also provide us with a Moral Rights Waiver with respect to such Selected Works.

**2.4 Territory.** The rights you grant under this Agreement are intended to allow us to make Offerings to potential AI Licensees for Training Rights and Reference Rights to be exercised within the United States. However, given that (a) a Trained Model may be accessed or used outside of the United States; (b) any Grounded Model may be (whether with or without authority) accessed or used outside the United States; (c) Output from Trained Models and Grounded Models may be shared outside of the United States; and (d) our Platform will be viewable and accessible outside of the United States, the licenses granted in this Section are all made for worldwide rights unless explicitly stated otherwise. The licenses granted to us in this Section are all transferable and assignable by us, but solely to the extent in connection with a permitted transfer or assignment of this Agreement.

### **3. Representations, Warranties and Disclaimers.**

**3.1 Of Creator.** You represent, warrant and covenant to us and to all applicable AI Licensees that: (a) you are at least eighteen 18 years of age and under no legal disability or contractual restriction that prohibits you from entering into this Agreement; (b) all information and data you provide to us or otherwise in connection with the Platform is current, complete, accurate and that you will keep it current and each copy of a Work you upload to the Platform is a complete and final copy of each such Work, except that you may remove images and/or any minor, non-material third-party content to which you do not have the right to license in connection with your AI Rights through the Platform; (c) each of your Selected Works was created exclusively by you or by you and any other Rightsholders; (d) each of your Selected Works was created in substantial part by you and, as applicable, other human Rightsholders, such that none of the Selected Works contain any more than *de minimis* content generated by AI; (e) you have disclosed any and all Rightsholders for each of your Works and each AI Right in which they have an interest and, subject to any other Rightsholders' interest in any AI Rights, you solely and exclusively own, or otherwise sufficiently control, all right, title and interest, including all copyright, contract, and AI Rights, in and to each Selected

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Work to the extent necessary for us to exercise the rights and licenses granted hereunder, including granting AI Licensees licenses to Available AI Rights; (f) you have obtained all rights, licenses, permissions, clearances, releases and waivers necessary for you to grant the rights and licenses granted in this Agreement and to otherwise allow us to exercise the rights and licenses contemplated hereunder, including, to the extent necessary for you to grant such rights and licenses, with respect to any individuals and any third-party material, content, and intellectual property, that may be referenced, depicted or otherwise incorporated in your Works, and upon reasonable request will provide to us copies of any of the foregoing (“**Rights Validation Documents**”); (g) neither your Works, nor our exercise of the rights and licenses granted hereunder, do or will infringe, misappropriate or otherwise violate any third party's rights, including any copyright, trademark, patent, trade secret, intellectual property or proprietary rights, or rights of publicity or privacy; (h) you have not granted any rights or licenses, or entered into any other agreements, that conflict with this Agreement or any rights or licenses you grant hereunder; (i) there is no pending or threatened lawsuit, claim, action or proceeding related to you or your Works that may affect our or any AI Licensee's ability to exercise the rights and licenses contemplated hereunder; and (j) your Works and other materials or information you may upload to the Platform or otherwise provide to us comply with the Review and Content Policies.

**3.2 Of Knowlio.** We represent and warrant to you that: (a) we have all necessary power and authority to agree to and be bound by this Agreement and to carry out its obligations as set forth herein; (b) we will comply in all material respects with all applicable laws in performing under this Agreement; (c) during the term of this Agreement we will provide our services in a professional and workmanlike manner; and (d) we will use no less than industry standard practices to secure the Platform and your Works and Information hosted therein against unauthorized access. While we strive to provide a positive and fair experience for all of our Platform users, we do not and cannot guarantee that the Platform will always be functional or available or that it or the opportunities it may offer will meet your needs, goals or expectations. Any FAQs, blog posts, explainer or informational videos and/or descriptions provided throughout the Platform the glossary and any similar educational or reference aids are approximate and, unless expressly referenced herein as being a part of this Agreement, are do not have binding effect on us and are provided for convenience purposes only.

**3.3 Disclaimers.** YOU ACKNOWLEDGE AND AGREE THAT EXCEPT AS EXPLICITLY STATED TO THE CONTRARY IN THIS AGREEMENT: (1) THE PLATFORM IS PROVIDED “AS IS” AND ON AN “AS AVAILABLE” BASIS; (2) YOUR ACCESS TO AND USE OF THE PLATFORM IS AT YOUR OWN RISK, AND (3) EXCEPT AS EXPRESSLY PROVIDED IN THIS SECTION, WE MAKE NO REPRESENTATIONS OR WARRANTIES, AND HEREBY DISCLAIM ANY AND ALL REPRESENTATIONS AND WARRANTIES OF ANY KIND RELATED TO THE PLATFORM, OUR OFFERINGS, AND AI LICENSEES, WHETHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING ANY (A) WARRANTIES OF MERCHANTABILITY, TITLE, AVAILABILITY, QUIET ENJOYMENT, NON-INFRINGEMENT OR FITNESS FOR A PARTICULAR PURPOSE AND (B) WARRANTIES THAT THE PLATFORM WILL MEET YOUR REQUIREMENTS, BE COMPATIBLE WITH YOUR DEVICES, HARDWARE OR SOFTWARE, BE OR REMAIN FREE FROM DEFECTS, INTERRUPTIONS, INACCURACIES, ERRORS, VIRUSES OR OTHER HARMFUL COMPONENTS OR CODE.

## **4. AI RIGHTS OVER TIME.**

**4.1 Modifications to Available AI Rights.** You may make changes at any time to your settings in the Platform for each of your Selected Works, whether that be to opt in or opt out of any AI Rights or other licensing setting. If you choose to opt-in to any AI Rights and/or any other licensing settings, or to opt-out of any Available AI Rights, these changes shall go into effect immediately. Licenses granted to AI Licensees before an opt-out of Available AI Rights was properly saved within the Platform will remain in effect, and the

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opt-out will only be effective with respect to those previously-granted licenses following the natural expiration (if any) of the applicable license.

**4.2 New AI Rights.** We may from time to time offer new AI Rights and/or new categories of AI Rights available for licensing **“New AI Rights”**. We will provide written notice to you of any New AI Rights, and you may freely choose within the Platform whether you wish to opt in or to decline any New AI Rights and categories we may make available. If you choose to opt in to any New AI Rights for Selected Works through the Platform, that opt in will operate as your consent to make each Selected Work available for the New AI Right(s) through the Platform, including your grant of all rights and licenses described under this Agreement or as may be included in the opt in to any such New AI Rights.

### **5. GRANTS TO AI LICENSEES.**

**5.1 Offerings.** We may create Offerings based on any criteria or information we choose (for example, by genre, subject matter or release year), to determine which Offering(s) your Selected Works (consistent with your Available AI Rights) may or may not be included in and to create customized Offerings or to allow prospective AI Licensees to create customized Offerings to meet their particular needs, however, any Offerings that include only your Selected Works shall require us to get your permission in advance. Subject to the foregoing, we make no representations, warranties, guarantees or promises as to which Offerings your Selected Works may or may not be included in, nor are we obligated to disclose to you any lists of other individual works that are included in any of its Offerings. You also understand that AI Licensees whose licenses include Licensed Works are under no obligation to use the Licensed Works.

**5.2 Pricing and Terms.** The long-term success of our Platform and our relationship with you depends on us constantly striving to obtain favorable terms for our Offerings overall, and as such, we will endeavor to set fair and marketable prices and fees for Offerings. We will determine the manner in which the Offerings are marketed, promoted, offered, and licensed to AI Licensees and all associated terms and conditions (including pricing and fees and any license tiers, types, durations or other variations), so long as the Offerings (and any licenses granted thereto) are consistent with this Agreement. We have no obligation to disclose to you or obtain your approval over the prices and fees we charge for each Offering other than as part of any Potential Deal Notice or as required to report Royalties. Because any number of works may be opted out of a Potential Deal prior to an Offering being licensed, we will make a good faith estimate of your potential Royalties, but we make no representations, warranties, promises or guarantees as to the amounts that will be actually charged to AI Licensees for Offerings or the amount of Royalties you may earn by licensing Available AI Rights for Selected Works in connection with the Platform.

**5.3 Deal Approvals.** You will be notified through the Platform of any potential Offering selected by an AI Licensee that includes one or more of your Available AI Rights for Selected Works (each a **“Potential Deal”** and such notice, the **“Potential Deal Notice”**) unless you have selected automatic deal approval within the Platform, as discussed in the next paragraph. A Potential Deal Notice will include a description of the proposed license(s) to be granted, the identity of the potential AI Licensee, a description of your Available AI Rights requested to be licensed, the term of the proposed license(s), a good faith approximation of the Royalties payable to you for the license term if all works originally requested to be in the Potential Deal are licensed, and a link to the applicable Licensing Restrictions that will apply to the deal if executed. If you wish to be included in that Potential Deal, no action is necessary, but if you do not want to participate in that Potential Deal, you will need to decline the Potential Deal by accessing the Platform and completing the process described in the Potential Deal Notice before the **“Deal Deadline”** of 168 hours (*i.e.*, 7 days) after we first send the Potential Deal Notice. If you do not decline a Potential Deal by the Deal Deadline you shall be deemed to have consented to the inclusion of your Selected Works for the applicable Available AI



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Rights in that Potential Deal. Information in a Potential Deal Notice, including any anticipated Royalties, is provided based on our reasonable, approximate calculations of what we believe in good faith that you may earn, including as a result of how many creators elect to participate in the Potential Deal, and we make no representations, warranties, guarantees or promises as to any Potential Deals, including whether the Potential Deal will ultimately proceed or any Royalties you may receive for such Potential Deal. Potential Deal Notices shall be sent at least three (3) times, which shall be roughly evenly spaced between the Potential Deal Notice and the Deal Deadline, to the contact information you have saved in your Platform account, which can be an email address, an SMS-enabled phone number, or both.

If you selected the Platform setting to automatically approve all new Potential Deals that include any of your Selected Works for Available AI Rights, you will not receive any Potential Deal Notices or have an opportunity to decline to participate in any Potential Deals, and you hereby consent to the inclusion of your Selected Works for Available AI Rights in licenses granted to AI Licensees through or in connection with the Platform. You may change your deal approval setting at any time through your Platform account and such changes will be made promptly after you save the change in your Platform account.

**5.4 AI Licensees.** We will determine the AI Licensee Terms for each Offering in good faith. We may change the AI Licensee Terms on a prospective basis (meaning that the new AI Licensee Terms will not be applied to any previously issued licenses) from time to time by posting the revised terms to the Platform. To the extent that any such change relates to any of your Available AI Rights, we shall notify you of such changes at least 30 days' before the changes go into effect. If at that time you do not wish to continue making any Available AI Rights available for licensing Selected Works under these new terms, you may terminate the Agreement or exercise an opt-out of those Available AI Rights as described above. We may also negotiate and enter into alternative or additional terms and conditions with each AI Licensee so long as any alternative or additional terms and conditions are consistent with the applicable Licensing Restrictions and do not otherwise grant any licenses that are contrary to your Available AI Rights or other licensing settings you have saved within the Platform.

## **6. ROLES AND RESPONSIBILITIES.**

We offer our Platform and act as an intermediary between Rightsholders and AI Licensees. You are at all times responsible for managing your Works within the Platform, including opting in and out of AI Rights, managing your information and metadata, reviewing any Potential Deal Notices, and communicating and negotiating with any other Rightsholders regarding your Works and AI Rights. We are not responsible for any mistakes or errors you may make in selecting and/or managing your AI Rights or any other settings within the Platform. We will contractually require each AI Licensee to comply with all AI Licensee Terms and will take other reasonable steps to address any non-compliance with the AI Licensee Terms through having (and where appropriate, exercising) rights to terminate an agreement where the AI Licensee Terms have been materially breached. Given the scale of the Platform and the number of works and licenses we will be managing, we can commit to making commercially reasonable efforts to notify you if we become aware that an AI Licensee has breached the Licensing Restrictions in a manner that affects your Licensed Works. However, even with these efforts, we do not and cannot control AI Licensees or their AI Products, business practices or End Users, and we are not responsible or liable for any AI Licensee's or End User's non-compliance with any applicable AI Licensee Terms or for any Inputs or so-called "**Metaprompts**" (instructions, scripts, rules, codes or other parameters set by an AI Licensee (or other non-End User supplier/provider of an AI Product) that provide directions to an AI Product, Trained Model, Grounded Model and/or Grounding Tool, for generating (or not generating) Outputs, or the substance thereof. You shall notify us if you believe that an AI Licensee is not in compliance with any AI Licensee Terms applicable to Licensed Works, or is otherwise infringing your intellectual property rights in a Work. In light of your report,

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or other information obtained by us about an AI Licensee's alleged infringement or violation of terms, we will take any steps we may deem appropriate, up to and including terminating our license with the applicable AI Licensee.

We do not have (or obtain through this Agreement) any of the rights needed to enforce your or other Rightsholders' intellectual property rights against any AI Licensee (other than for a potential breach of contract claim described above), End User or other individual or entity. As we cannot do this on your behalf, enforcing your intellectual property rights and otherwise taking action and/or seeking relief you may deem appropriate remains solely your obligation and the obligation (of any other Rightsholders for a given Work and associated AI Right, if applicable). If you believe any content or other material on or available through the Platform infringes any copyright owned or controlled by you, you may submit a written claim in the manner described in our [DMCA Copyright Infringement Policy](#) (found in Section 11 of our Terms of Service available on the Platform).

### 7. OWNERSHIP.

**7.1 Work IP.** For purposes of this section, the term "**Work IP**" shall mean, for each Work, any pre-existing, non *de minimis* portion of that Work, and the intellectual property rights therein, including any verbatim excerpt that constitutes original authorship, original characters (including names and identifying attributes), and other elements of that Work that are protected under U.S. or other intellectual property laws.

**7.2 Ownership of Works.** Ownership of, and copyright and other intellectual property rights in and to, the Works and any Work IP remains with the applicable copyright owner(s) (*i.e.*, the respective Rightsholders). Subject to the rights and licenses granted herein, nothing in the Agreement shall be construed as transferring any copyright or other ownership interest in or to your Works or Work IP to us, to any AI Licensee, or to any End User.

**7.3 Ownership of Output.** As between you and any AI Licensees, AI Licensees (and, at their discretion in accordance with the terms of their licenses, the applicable End Users), will own the Output and any associated copyright or other intellectual property rights in and to that Output, but strictly excluding any of your Work IP that may be incorporated into that Output. Each Output can be used by the applicable AI Licensee and End User in perpetuity, on the condition that it was generated and continues to be used in a manner consistent with the applicable AI Licensee Terms and the Available AI Rights effective on the date the applicable license was granted to the AI Licensee.

To the extent Work IP is incorporated into any Output in accordance with the applicable AI Licensee Terms, you hereby grant to the AI Licensee and its applicable End Users a worldwide, perpetual, non-exclusive, sublicensable (but only to its End Users), royalty-free right and license to use such Work IP as it appears in that Output and in a manner that complies with the applicable AI Licensee Terms effective on the date the applicable license was granted to the AI Licensee (or as may be amended, from time to time, in accordance with your Available AI Rights). You hereby waive any and all moral rights you may have in or with respect to, and any right to inspect or approve or to receive any accounting or compensation (other than any Royalties) for, any Output (including any Work IP that was incorporated therein in accordance with the applicable AI License Terms).

### 8. ROYALTIES.

**8.1 Royalties.** The term "**Royalties**" means, for each Selected Work and each of the Available AI Rights therein, the portion of Net Licensing Revenues attributable to our grant of licenses via Licensed Offerings

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that actually include each such Available AI Right for that Selected Work, less Our Fee. The term “**Net Licensing Revenues**” means all amounts actually received by us from AI Licensees in the applicable calendar month for licensing Licensed Offerings that include your Selected Works and calculated after making any necessary deductions for taxes, levies, duties, currency exchange fees, payment processing fees, refunds, chargebacks and cancellations. Other than the Royalties expressly described in the preceding sentence, you are not entitled to receive any compensation or other fees for the exercise of any right or license hereunder from us, from any AI Licensee or from any End User. We will calculate Royalties in our sole discretion, and we may use certain weighting, formulas or other objective criteria or adjustments to determine what portion of Net Licensing Revenues are attributed to each Available AI Right and Selected Work within different Licensed Offerings and/or to otherwise account for the values of different Licensed Offerings in each reporting period, Available AI Rights and Selected Works, and the methodology used for such calculations shall be disclosed and made transparent to you. So long as you are not in material breach of any the representations or warranties herein or otherwise in material breach of the Agreement, you are entitled to receive a share of Royalties for the licensing of your Available AI Rights, as follows.

If you are the only Rightsholder of a particular Available AI Right for a Licensed Work, then you will be entitled to receive 100% of the Royalties calculated for that license. If there are multiple Rightsholders for a given Licensed Work and Available AI Right, then the Royalties that are calculated for that Available AI Right for the Licensed Work will be allocated among all such Rightsholders based on the percentages saved in the Platform at the time the relevant license was granted to the AI Licensee and you will be entitled to receive your proportionate share of such Royalties. The Royalty share percentages among Rightsholders for each Available AI Right in a given Selected Work must equal 100% at all times; if you and/or any other Rightsholder adjust the Royalty shares such that total allocation no longer equals 100%, then the Available AI Right for that Selected Work will be suspended and unavailable for licensing until such time as you and the other Rightsholders resolve the issue and adjust your settings so that the total Royalty share percentages equal 100%. We reserve the right to implement minimum requirements or parameters on Royalty share allocations (for example, by only allowing adjustments in 5% increments or requiring a minimum or maximum share for certain types of Rightsholders).

You may log into your account at any time to see the Royalties you have earned alongside other reporting that we may make available. If there are multiple Rightsholders for a particular Available AI Right for a particular Licensed Work, you will have visibility to the percentage of Royalties allocated to each Rightsholder but not to the actual amounts received by each other Rightsholders, and vice-versa.

**8.2 Our Fees.** In consideration of your rights to access and use of the Platform and our marketing, licensing and commercialization of your Available AI Rights, we will retain 20% of all Net Licensing Revenues (“**Our Fee**”) before distributing Royalties. If at any time we desire to change Our Fee, we shall notify you of such change and its effective date and no new licenses for your Selected Works shall be made following such effective date unless and until you have expressly opted in to such change in Our Fee through the Platform. Subject to the foregoing limitations, we reserve the right to increase or modify Our Fee for any or all AI Rights on a prospective and generally applicable basis only, *i.e.*, to new licenses granted to AI Licensees, or renewals of existing licenses to AI Licensees, in each case, going into effect after the change to Our Fee has become effective.

**8.3 Payments.** Royalties are to be paid on a quarterly basis in accordance with the then-current Payment Terms using the payment information saved in your Platform account at the time Royalties are being processed, except to the extent you have provided an alternative method of paying Royalties as contemplated in the next paragraph. You are responsible for providing accurate payment information and

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updating your Platform account to reflect any changes to your payment information. Our obligation is to make payment to the payment account information or online payment processing service (e.g., PayPal) designated in your Platform account, and we are not liable or responsible for any missed or misdirected Royalty payments as a result of your failure to provide current or accurate payment information or for any payment provider or other third party failing to make payment to you. Notwithstanding the foregoing, we will use reasonable efforts to retain your Royalties and pay them to you at such time as you provide correct, updated payment information on your Platform account. We reserve the right to pay your share of Royalties related to Available AI Rights for which a publisher is designated as a Rightsholder directly to the applicable publisher. While we will take reasonable steps to advocate for your publisher paying your share of Royalties to you (or credit it against any recoupment obligations you may have) in accordance with their agreement with you, we are not liable or responsible for your publisher, their payment processes or timing, or for any failure to pay you, and any disputes between you and your publisher in regard to Royalties or otherwise, which must in each case be resolved between you and your publisher. In cases where we are or are prepared to pay Royalties directly to you and you have directed us to make payments to an agent or any assignee, we shall have the right to pay your share of Royalties to such party as directed with no further liability for the payment of Royalties to you. Any request by you to make payments to your agent or any other party shall be deemed to be made subject to the following authorization: Creator hereby authorizes its agent to collect and receive on its behalf any Royalties due under this Agreement, and receipt of such monies by agent shall be a good and valid discharge of Knowlio's obligations to make such payments to Creator.

**8.4 Other Payment Terms.** We reserve the right to set a reasonable minimum payout amount for distributing Royalties each payment period (currently \$50.00 USD, not to exceed \$100). If the Royalties in your account are less than that minimum amount, or you have not provided valid payment information, when we are processing periodic Royalties through the Platform, those amounts will not be paid and instead will remain in your account until such time your account meets the payment minimum for a give pay period. You are responsible for any and all taxes payable by you for Royalties received by you, and all associated fees, penalties and interest, and agree to indemnify us for any such amounts. Other than the Royalties expressly referenced in this section, no additional fees or amounts of any kind or nature shall be payable to you by us with respect to our use of Works in connection with the Platform and any other exercise of the rights and licenses granted hereunder. For the avoidance of doubt, we shall not be obligated to pay you any amounts in connection with the storage or hosting of Works and/or any incidental copying or reproduction of Works for purposes of operating the Platform, nor are AI Licensees obligated to pay you or any other Rightsholder any fees or royalties on any Output generated by their End Users unless otherwise express stated in the AI Licensee Terms applicable to a particular Available AI Right. Notwithstanding anything to the contrary herein, we reserve the right to retain any Royalties to offset and apply towards any amounts or damages you may owe to us, including in connection with your indemnification obligations hereunder. In addition, if this Agreement is terminated due to your breach of any representation or warranties or any other material breach of the Agreement, we may, in addition to any other rights or remedies we may have at law or in equity, retain any unpaid Royalties otherwise payable to you, but only to the extent necessary to offset any damages or losses we or our AI Licensees incurred in connection with such breach or material breach and/or as liquidated damages.

## **9. TERM AND TERMINATION.**

**9.1 Term.** The term of the Agreement begins on the date you enter into this Agreement and continues until terminated in accordance with its terms.

**9.2 Your Termination.** You may terminate this Agreement in its entirety for any reason and at any time by cancelling your Platform account or by providing us with written notice at [support@knowlio.ai](mailto:support@knowlio.ai).

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You may also terminate the applicability of a particular Work or Works by removing the Work or Works from your account. If there are multiple Rightsholders for one or more Available AI Right(s) in a Work, removal of such Work by you or any other Rightsholder will result in such Available AI Rights in that Work no longer being available in the Platform, but copies of the Work may remain within the Platform. Termination of the Agreement will not terminate any licenses granted to AI Licensees prior to the effective date of such termination and will be subject to the terms outlined in this section, below.

**9.3 Our Termination.** We reserve the right to terminate this Agreement and/or otherwise terminate, suspend, restrict or block your Platform account and/or your access to and/or use of the Platform for any good faith reason, including your breach of the Agreement or any suspected fraud or security issues, in each case in our sole discretion and without prior notice or liability to you.

**9.4 Effect of Termination.** Upon any termination of this Agreement, your rights set forth herein will terminate other than the right to receive your Royalties for previously granted licenses, and we will continue to pay you any additional Royalties for licenses granted prior to such termination for so long as the applicable license(s) include(s) your Licensed Works. We may retain a copy of all Works, and all other information stored in or associated with your account for a reasonable period of time for our legal, compliance and record-keeping purposes (for any inadvertent retention beyond a reasonable period of time, the sole remedy shall be removal of such content). Except as expressly contemplated in this subsection or as may be otherwise determined by us in our sole discretion, termination of this Agreement, whether by you or us, will not terminate or otherwise affect any previously granted licenses to AI Licensees, and such licenses shall remain in effect for the remainder of their current license terms (which, for the avoidance of doubt, may in some cases be for the duration of your copyright) in accordance with the applicable AI Licensee Terms. For any licenses that were granted on a non-perpetual term or other renewing basis, we will instruct those AI Licensees to, for any subsequent renewal periods, cease using the Licensed Work in accordance with the methods and timing described in their AI Licensee Terms. You acknowledge and agree that, with respect to Training Rights, AI Licensees may continue to use any Trained Models that that were created using Licensed Works without any obligation from us that such Trained Model “unlearn” any information from any Licensed Work. Termination of the Agreement will be without limitation to any other rights or remedies we may have at law or in equity. In addition, any provision which by its nature is intended to survive, including provisions related to intellectual property ownership, perpetual rights, confidentiality, indemnification, limitations of liability, and arbitration, will survive termination.

## 10. INDEMNIFICATION.

**10.1 Of Knowlio.** You agree to indemnify and hold harmless Knowlio, its affiliates, and each of its and their respective employees, officers, directors, contractors, owners, suppliers, service providers, licensors, AI Licensees, agents, representatives, successors and assigns (collectively, the “**Knowlio Parties**”) from and against any and all claims, demands, complaints, damages, losses, liabilities, judgments, fines, penalties, interest, fees, expenses and costs (including reasonable attorneys’ fees and expenses) (collectively, “**Claims**”) arising out of or in connection with: (a) a breach or alleged breach of your representations, warranties and/or obligations under this Agreement or other material or willful breach of this Agreement; or

(b) any disputes or interactions between you and any other Rightsholders. You agree that we shall have the right, but not the obligation to control the defense and settlement of any third-party Claims (without limiting your indemnification obligations with respect to that Claim) and that you agree to cooperate with us in defending and settling such Claims. We will not settle any third-party Claim in an amount that requires you to pay any monetary amounts in excess of your unpaid Royalties without your written consent, which you may not unreasonably withhold or delay. You may not settle or otherwise dispose of any Claims for which you are required to provide indemnification without our prior written consent.

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**10.2 Of Creator.** We agree to indemnify and hold harmless Creator and its agents, representatives, successors and assigns, if any (collectively, the “**Creator Parties**”) from and against any and all Claims from a third-party arising out of or in connection with a breach or alleged breach of our representations, warranties and/or obligations under this Agreement or other material or willful breach of this Agreement by us. You agree that we shall have the right, but not the obligation to control the defense and settlement of any third-party Claims and that you agree to cooperate with us in defending and settling such Claims. You will not settle any third-party Claim without our written consent, which we may not unreasonably withhold or delay. We may not settle or otherwise dispose of any Claims for which we are required to provide indemnification without your prior written consent.

### **11. LIMITATIONS OF LIABILITY.**

**11.1 Disclaimer of Damages.** SUBJECT TO THE EXCLUSIONS SUBSECTION BELOW, YOU ACKNOWLEDGE AND AGREE THAT THE KNOWLIO PARTIES WILL NOT BE LIABLE TO YOU OR ANY OTHER INDIVIDUAL OR ENTITY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES, INCLUDING ANY LOST PROFITS, LOST DATA (INCLUDING LOSS OF WORKS), LOSS OF GOODWILL, DAMAGE TO EQUIPMENT, DEVICES OR OTHER PROPERTY, OR ANY OTHER TANGIBLE OR INTANGIBLE LOSS, ARISING OUT OF OR IN CONNECTION WITH THE PLATFORM, ANY LICENSE OFFERING (INCLUDING AI LICENSEE AND END USER USE OF WORKS LICENSED THEREUNDER) OR OTHERWISE IN ANY WAY RELATING TO THE AGREEMENT OR THE PLATFORM, REGARDLESS OF THE FORM OF ACTION, WHETHER BASED ON WARRANTY, CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE, OR ANY OTHER LEGAL OR EQUITABLE THEORY (INCLUDING INFRINGEMENT), AND WHETHER OR NOT ANY KNOWLIO PARTY HAS BEEN INFORMED OF THE POSSIBILITY OF SUCH DAMAGES AND REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE. SUBJECT TO THE EXCLUSIONS SUBSECTION BELOW, YOUR SOLE AND EXCLUSIVE REMEDY AGAINST KNOWLIO AND ANY OTHER KNOWLIO PARTY FOR ANY PROBLEMS OR DISSATISFACTION WITH THE PLATFORM IS TO STOP USING THE PLATFORM AND CANCEL YOUR ACCOUNT.

IN ADDITION, IF AND TO THE EXTENT KNOWLIO IS LIABLE TO YOU OR ANY OTHER INDIVIDUAL OR ENTITY FOR ANY DIRECT DAMAGES FOR ANY CLAIMS ARISING OUT OF OR IN CONNECTION WITH THE PLATFORM, ANY LICENSE OFFERING, OR THE AGREEMENT, OTHER THAN DAMAGES OR CLAIMS ARISING FROM ITS GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, THEN, SUBJECT TO THE EXCLUSIONS SUBSECTION BELOW, THE AGGREGATE LIABILITY OF KNOWLIO FOR SUCH DIRECT DAMAGES WILL BE LIMITED TO GREATER OF (A) \$500.00 USD OR (B) IF YOUR CLAIM RELATES TO AN OFFERING, OR A LICENSE GRANTED BY KNOWLIO, THE FEES KNOWLIO RECEIVED SPECIFICALLY FOR INCLUDING YOUR SELECTED WORK(S) IN SUCH OFFERING OR LICENSE IN THE FOUR (4) CALENDAR MONTH PERIOD PRIOR TO THE EVENT OR CIRCUMSTANCE GIVING RISE TO SUCH CLAIM. FOR CLARITY, KNOWLIO’S OBLIGATIONS TO PAY ANY ROYALTIES OWED UNDER SECTION 6 ARE NOT CAPPED OR LIMITED BY THIS PARAGRAPH.

**11.2 Exclusions.** SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES, IN WHICH CASE THE LIMITATIONS, EXCLUSIONS, AND DISCLAIMERS IN THE AGREEMENT APPLY TO THE MAXIMUM EXTENT PERMITTED BY LAW, AND KNOWLIO DOES NOT DISCLAIM ANY WARRANTY, LIABILITY FOR CERTAIN DAMAGES, OR OTHER RIGHT THAT IT IS PROHIBITED FROM DISCLAIMING UNDER APPLICABLE LAW, AND YOU MAY HAVE GREATER RIGHTS UNDER SUCH APPLICABLE LAWS.

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### 12. ARBITRATION AGREEMENT.

This section is deemed to be a “written agreement to arbitrate” pursuant to the Federal Arbitration Act, and you and Knowlio each agree that this section is intended to satisfy the “writing” requirement of the Federal Arbitration Act. THE FOLLOWING TERMS TO WHICH YOU ARE CONSENTING CONSIST OF A PRE-DISPUTE RESOLUTION PROCESS, BINDING ARBITRATION PROVISION AND JURY TRIAL WAIVER. PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR RIGHTS AND WILL IMPACT HOW CLAIMS YOU AND KNOWLIO HAVE AGAINST EACH OTHER ARE RESOLVED.

By using the Platform, you and Knowlio agree that if a dispute arises between us related to the Platform or your use of it, including common law or statutory claims, the dispute will be resolved as set forth in this section. You and Knowlio agree that any and all disputes or claims that have arisen or may arise between us in connection with the Platform shall be resolved exclusively through confidential, final, and binding arbitration; provided that either party may file suit in court seeking to enjoin infringement, misappropriation, or misuse of its intellectual property rights. YOU ARE GIVING UP THE RIGHT TO LITIGATE A DISPUTE IN COURT BEFORE A JUDGE OR JURY.

**12.1 Pre-Arbitration Dispute Resolution.** You and Knowlio agree that whenever you or Knowlio have a disagreement (“**Dispute**”) with the other arising out of, connected to, or in any way related to the Platform that is subject to the arbitration provision herein, you and Knowlio will first send a written notice to the other party (a “**Demand**”). You and Knowlio agree that the requirements of this Dispute Resolution section will apply even to disagreements that may have arisen before you accepted these Terms. You must send the Demand to Knowlio, Attn: General Counsel, 201 Spear Street, 6th Floor, San Francisco, CA 94105. Knowlio must send the Demand to you via certified mail to the most recent address Knowlio has on file for you (or by email if Knowlio only has an email address for you on file).

A Demand (1) shall seek to resolve a Dispute only on an individual basis; (2) shall state the full basis for the Dispute (including the details about the Dispute sufficient for the recipient to review and respond) and the date that the Dispute arose; (3) shall provide the individual claimant’s full name, phone number, and email address to confirm their identity and to aid communication; and (4) shall be personally signed by the individual claimant or for Knowlio by its authorized representative (and not only their counsel).

Within twenty (20) business days of receipt of a Demand, the recipient may request an individualized video or telephone conference to attempt in good faith to resolve the Dispute which both you and Knowlio will personally attend (with counsel, if represented). You and Knowlio agree that you and Knowlio will not take any legal action, including filing a lawsuit or demanding arbitration, until after the period to request a conference expires or, if a conference is requested, twenty (20) business days after the individualized conference is completed.

Compliance with this informal dispute resolution procedure section is mandatory and a condition precedent to initiating any lawsuit or arbitration. This procedure is essential to providing each of us a meaningful opportunity to resolve Disputes informally. Any applicable limitations periods and filing fee deadlines will be tolled while the parties engage in the process set forth above. A court of competent jurisdiction may enjoin the filing or prosecution of a lawsuit or arbitration if these requirements have not been met.

**12.2 Arbitration Procedure:** If the Dispute stated in the Demand is not resolved to your or Knowlio’s satisfaction within ten (10) business days after the conference described above (or within ten (10) business days after the time when such a conference may be requested if no conference has been requested), and you intend on taking legal action, you agree that you will file a demand for arbitration with JAMS. The

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arbitration will be conducted under JAMS's Comprehensive Rules & Procedures, including the JAMS's Consumer Rules and the JAMS Mass Arbitration Procedures and Guidelines (available at <https://www.jamsadr.com/mass-arbitration-procedures>) (as applicable), as modified by this Agreement to Arbitrate. The JAMS's rules and a form for initiating arbitration proceedings are available on the JAMS's website at: [www.jamsadr.com/rules-comprehensive-arbitration](http://www.jamsadr.com/rules-comprehensive-arbitration). The arbitrator, and not any federal, state, provincial, territorial or local court or agency, shall have exclusive authority to resolve all disputes arising out of or relating to the interpretation, applicability, enforceability, or formation of these Terms, including, but not limited to, any claim that all or any part of these Terms is void or voidable, except that a court of competent jurisdiction may enjoin the filing or prosecution of an arbitration if the Pre-Arbitration Dispute Resolution requirements set forth above have not been met and may enjoin the mass filing, prosecution, or administration of arbitrations and the assessment of arbitration fees except as specifically authorized herein.

The arbitration shall be held in the United States county in which you reside or at another mutually agreed location. If the value of the relief sought is \$10,000 or less, either you or Knowlio may elect to have the arbitration conducted by telephone and/or video conference or based solely on written submissions, which election shall be binding on the other party subject to the arbitrator's discretion to require an in-person hearing if the circumstances warrant. Attendance at an in-person hearing may be made by telephone and/or video conference, unless the arbitrator requires otherwise. The arbitrator will decide the substance of all claims in accordance with the laws of the State of New York, including recognized principles of equity, and will honor all claims of privilege recognized by law.

The arbitrator's award shall be confidential, final, and binding, and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof. Payment of all filing, administration, and arbitrator fees will be governed by JAMS's rules.

### 13. GENERAL TERMS.

**13.1 Notices; Consent to Electronic Communications.** We shall provide required or permitted notices to you through the email address(es) saved by you in your Platform account. We may also mail you notices to a physical address through any reasonable means we choose to the mailing address you provide through the Platform, if any. You agree to keep all such contact information up to date, and we shall have no liability for your failure to receive or read any notice sent to you. Notice by you must be delivered to us at [notices@knowlio.ai](mailto:notices@knowlio.ai). By using the Platform (or any part thereof), you consent to receiving electronic communications from us (including, if you have opted in, via text message) and from other users of the Platform. These electronic communications may include notices about applicable fees and charges, transactional information and other information concerning or related to the Platform. These electronic communications are part of your relationship with us. You agree that any notices, agreements, disclosures or other communications that we send you electronically will satisfy any legal communication requirements, including that such communications be in writing. Standard carrier data charges may apply to your use of text messaging, and you are solely responsible for such charges.

**13.2 Confidentiality.** During the course of your use of the Platform and relationship with us, you and we may access or receive certain confidential and proprietary information of the other's, which shall be explicitly identified as such in this paragraph or marked confidential. Our confidential information shall include data related to Royalty calculations and the methodology used for such calculations (except to the extent we make data generally available to the public) and the amounts you receive through the Platform ("**Knowlio Confidential Information**"). Your confidential information, as between us and you, shall be your contact, financial and any other non-public personally identifying information as well as any *Rights*



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*Validation Documents* you or someone on your behalf deliver to us as requested and/or required under your representations and warranties, above, and any of your personally identifying information (“**Creator Confidential Information**”). Each of you and we agree to keep the Knowlio Confidential Information and Creator Confidential Information, respectively, as confidential and not disclose it to any other person, or in any public forum, except that either of you or we may share the Knowlio Confidential Information or Creator Confidential Information, as applicable, with its representatives, agents, accountants, attorneys, auditors and other advisors with a need to know such information in order to advise or assist on your or our behalf, as the case may be, and have agreed to keep such information strictly confidential. The following types of information will not be treated as Knowlio Confidential Information or Creator Confidential Information, as the case may be: any information that either you or we can reasonably demonstrate (i) is or becomes generally available to the public (through no improper action or inaction by the other party or any affiliate, agent, consultant or employee of that party); (ii) was in the receiving party’s possession or known by it without restriction prior to receipt from the other party; (iii) was rightfully disclosed to the receiving party by a third party without restriction; or (iv) was independently developed by that party without use of any Knowlio Confidential Information or Creator Confidential Information, as the case may be. Either of you or we may make disclosures required by law or court order provided the party making such disclosures uses diligent reasonable efforts to limit disclosure and to obtain confidential treatment or a protective order, if applicable, and allows the other party to participate in the proceeding.

**13.3 Governing Law; Interpretation.** The Agreement, your interactions with us and the Platform as well as any disputes or other matters that may arise in connection with us or the Platform, will be governed by the laws of the State of New York, without regard to any conflict of law principles. For any dispute that is not subject to arbitration, you and we each hereby irrevocably consent and submit to the personal and exclusive jurisdiction of the state courts and federal courts located within either New York City, New York or San Francisco, California, and waive all objections thereto. In the event of a conflict between the Terms of Use, the Privacy and/or this Agreement, this Agreement will govern and prevail. You and we acknowledge and agree that this Agreement is freely entered into by each party, and that no court or arbiter should construe any ambiguity against us solely by virtue of our role as draftsman. Headings in the Agreement are used for reference only and shall not affect interpretation of any part of this Agreement. If any court of competent jurisdiction or arbitrator declares any provision of the Agreement to be unenforceable or invalid, then that provision will be enforced to the extent permitted by law, and the other provisions of the Agreement will remain unaffected and in full force and effect and, if necessary, we will amend or replace such provision with one that is valid and enforceable and which achieves, to the extent possible, our original objectives and intent.

**13.4 Entire Agreement; Our Relationship; Assignment.** The Agreement constitutes the complete and exclusive agreement between you and us concerning your licensing of Works to us, and supersedes and governs over all prior proposals, agreements or other communications. Nothing in the Agreement shall be construed as creating any agency, partnership or other form of joint enterprise between you and us, and our relationship is that of independent contractors. Other than your assignment of Royalties as expressly provided for above, you may not assign or transfer this Agreement, whether in whole or in part, or any obligations under this Agreement, in whole or in part, by operation of law or otherwise, without our prior written consent. We may assign or transfer this Agreement, or delegate any rights or obligations under the Agreement, in whole or in part, by operation of law or otherwise, in connection with a sale of all or substantially all of the assets of our company. This Agreement will inure to the benefit of, and be binding upon, each party’s successors and permitted assigns. Any assignment or transfer of the Agreement in violation of the Agreement shall be null and void.

*<Signature page follows>*

**Knowlio**  
**Creator License Agreement**

*<Signature page to Creator License Agreement between you and Knowlio>*

**ACCEPTED AND AGREED:**

**CREATOR**

**Signature:** \_\_\_\_\_

**Name:** \_\_\_\_\_

**Date:** \_\_\_\_\_

**Knowlio**  
**Creator License Agreement**  
**APPENDIX A**

**Review and Content Policies**

**Review of Works:** We may review any Work you choose to license through the Platform for any business purpose, including verifying the Work's compliance with this Agreement, collecting relevant Information and determining how to categorize, index and market each Work within the Platform and we retain discretion to determine what Works we will and will not accept for licensing.

**Content Policies:** Any Work, other materials or information which you upload to the Platform or provide (or have provided on your behalf) to us must comply with all applicable federal, state, local and international laws, rules and regulations and must not: (i) promote or encourage any illegal or unlawful activities, including terrorism or terroristic acts or organizations; (ii) slander, defame, or libel any individual; (iii) violate any intellectual property or proprietary rights of any third parties; (iv) violate the legal rights (including rights of publicity and privacy) of any individual, including by not containing any individual's personal information or data, including home addresses, social security or governmental ID numbers, credit card or financial account information, personal phone numbers, personal email addresses, personal signatures or other information or communications that would reasonably be expected to be considered as private or confidential in nature, without the individual's express written consent; (v) harass, abuse, threaten, menace or cruelly denigrate others or promote hatred, bigotry, discrimination on the basis of any protected class, or promote or encourage any of the foregoing; (vi) encourage or promote suicide or self-harm; (vii) be likely to deceive others, contain knowingly inaccurate, deceptive or fraudulent material, or misrepresent or disguise the source, identity, authorship or content of information; (viii) exploit or encourage the exploitation of minors in any way, including by displaying, depicting or describing any minor in a sexual, violent or exploitative context, in a state of undress, or in a lewd, lascivious, or provocative manner; (ix) contain any material that in its display, depiction or description is obscene; or (x) contain any viruses, worms, malware, spyware, or other malicious or disruptive code and are not subject to any technological restrictions, password protections, encryption, or digital rights management technologies or restrictions.